

ing to the *primâ facie* line of their * duty and the [*348] ordinary practice, and express notice to them of the law of Scotland had not been proved, they were not answerable (a).

13. **Foreign domicile.** — As personal property is regulated by the law of the domicile, the trustee, if a *cestui que trust* be domiciled abroad, should be careful how he deals with the interest of that *cestui que trust*. By the law of some countries a male does not attain majority till twenty-two, but a female at seventeen (b); and in other countries, as in Scotland, infants above the age of puberty (fourteen in males, and twelve in females) can with their curators give valid receipts for debts and legacies (c). In some countries the wife has an equity to a settlement, and in others (as in Denmark) she has not (d). [In the State of New York, the wife is entitled to a legacy or distributive share, as if she were sole (e).] In Australia, the Court pays the money of a married woman to the husband, without examination of the wife (f). If the trustee has no notice of the difference between the two laws, he might not be liable, but the safer course would be to make inquiry.

14. **Presumption of death.** — It often happens that a *cestui que trust* has gone abroad and has *not been heard of for seven years*, and in that case the law presumes for certain purposes that the person was dead at the expiration of the seven years, but not that he died at any particular moment of that period (g). But as the fact of death is presumed only, the conclusion of law may be rebutted by explanatory circumstances (h); [and the *onus* of proving at what particular time the death took place lies with the person asserting a right depending on the death having occurred at that

(a) *Leslie v. Baillie*, 2 Y. & C. C. C. 91.

(b) *Re Hellman's Will*, 2 L. R. Eq. 363; and see *Re Blithman*, 2 L. R. Eq. 23.

(c) *Re Chrichton's Trusts*, 24 L. T. 267.

(d) *Dues v. Smith*, Jac. 544.

[(e) *Re Lett's Trusts*, 7 L. R. Ir. 132.]

(f) *Re Swift's Trusts*, W. N. 1872, p. 195.

(g) *Dunn v. Snowden*, 2 Dr. & Sm. 201; *Lamb v. Orton*, 6 Jur. N. S. 61; *Nepean v. Doe*, 2 M. & W. 894; and see *Sillick v. Booth*, 1 Y. & C. C. C. 117; *Re Phene's Trust*, 5 L. R. Ch. App. 139.

(h) *Bowden v. Henderson*, 2 Sm. & G. 360.